

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-BUTTERFLY-1, Inc., formerly known as Bed Bath & Beyond, Inc. ("Complainant" or "BBBY"), and Respondent BAL Container Line Co., Limited ("BAL" and, collectively with BBBY, the "Parties"), by and through their undersigned counsel, hereby jointly submit this Joint Motion to Extend Deadlines (the "Motion") respectfully requesting an extension of the schedule set forth in the Presiding Officer's Fourth Revised Scheduling Order in order to accommodate the additional deposition of Respondent's corporate witness pursuant to the Presiding Officer's February 12, 2026, Order on Third Motion to Compel.

I. THE CURRENT SCHEDULE

On November 14, 2025, the Presiding Officer entered the Fourth Revised Scheduling Order, which includes deadlines affecting this Motion as follows:

December 15, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admission, and RFPs.
January 20, 2026	Disclosure of initial expert reports, if any.
February 10, 2026	Disclosure of rebuttal expert reports, if any.

February 24, 2026	Complete expert depositions. Close of all discovery.
March 24, 2026	Complainant's initial brief, proposed findings of fact, and appendix.
April 21, 2026	Respondent's opposition brief, proposed finding of fact, and appendix.
May 5, 2026	Complainant's reply brief and responses to Respondent's proposed findings of fact.

II. PROPOSED AMENDED SCHEDULE

Given the Presiding Officer's February 12, 2026, Order on Third Motion to Compel ordering an additional deposition of Respondent's corporate witness and the significant possibility that this corporate deposition testimony may bear on expert discovery, the Parties respectfully submit the below proposed amended schedule. In preparing the schedule proposed below, the Parties have (1) worked collaboratively to schedule the deposition of Respondent's corporate witness for the earliest allowable date, which requires international travel for both the witness and counsel for Respondent, and (2) have sought limited additional time to incorporate any relevant deposition testimony from the corporate deposition in supplemental expert reports, as recently ordered by Administrative Law Judge Alex Chintella in his Sixth Amended Scheduling Order in FMC Docket No. 24-12 after ordering an additional corporate deposition to be taken after the parties had submitted initial expert reports but before the taking of expert depositions.

February 27, 2026	Complete deposition of Respondent's corporate witness.
March 13, 2026	Complainant's deadline to submit supplemental expert report with respect to additional corporate witness testimony.
March 27, 2026	Respondent's deadline to submit supplemental expert reports with respect to additional corporate witness testimony.
April 15, 2026	Complete expert depositions. Close of all discovery.

May 21, 2026	Complainant's initial brief, proposed findings of fact, and appendix.
June 18, 2026	Respondent's opposition brief, proposed findings of fact, and appendix.
July 2, 2026	Complainant's reply brief and responses to Respondent's proposed findings of fact.

The Parties have stipulated that the scope of any supplemental expert reports shall be: (1) limited to addressing the additional deposition testimony of Respondent's corporate witness, (2) submitted in the form of supplementary reports rather than modified versions of the expert reports previously produced in this case, and (3) limited to 15 pages per supplemental report.

[SIGNATURE PAGE FOLLOWS]

Dated: February 24, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

THEODORA ORINGER

/s/ J. Zachery Morris

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon Respondent BAL Container Line Co., Limited by emailing a copy to their counsel of record listed below:

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